

CHINA VS INDIA Who got the better nuclear deal?

The BJP alleges that India got a poorer deal than what China got from the US in 1985. Though they are not comparable as China is a recognised Nuclear Weapons State and India is not even a member of the NPT, the score:

SCORE

RIGHT TO BUY REACTORS AND RELATED COMPONENTS

- CHINA** Can buy reactors and related materials and components to run civilian nuclear power plants.
- INDIA** Mentions full civil nuclear energy pact that includes but is not limited to reactors and other components.



RIGHT TO REPROCESS SPENT FUEL

- CHINA** Needs US approval to reprocess fuel known as a "best effort" approach.
- INDIA** Has the prior consent to reprocess the fuel and a time frame for procedures.



RIGHT TO STRATEGIC RESERVES OF FUEL

- CHINA** No assurances of strategic reserves to fuel its imported reactors.
- INDIA** Specific assurance of strategic reserve for the lifetime of its imported reactors.



RIGHT TO VERIFICATION

- CHINA** US personnel permitted to visit sites in China if it buys its reactors.
- INDIA** Only IAEA personnel permitted visits to reactors under safeguards clause.



FAILURE TO ABIDE BY TREATY

- CHINA** Penalty in accordance with respective national laws but allows for principle of international law.
- INDIA** Penalty in accordance with respective national laws with mention of international law elsewhere.



CESSATION OF AGREEMENT

- CHINA** The US can cease ties if China does not comply including "inconsistent behaviour" (read Pakistan).
- INDIA** Only violations on material transgressions or testing. US has right to return. No pressure on foreign policy.



INDIA GAINS CHINA GAINS DRAW

wide public debate and assuage the concerns of the Left and the BJP. Manmohan told his negotiators to take up with the US all their earlier objections. The Government believes it has met most of these conditions and is confident that reason would prevail if the members of Parliament allow a decent debate on the subject. The Left, in fact, may not have much to complain on specifics (*see box*) as the Government has met all the nine points it had flagged in a previous session. The Government's concern is that Karat is shifting the goalposts by questioning whether India should even enter into a strategic partnership with the US.

BJP has concentrated its attacks on the constrictions in India's ability to conduct a future nuclear test that the deal imposes. Also because it believes that the agreement seeks to cap India's weapons capability. Former national security adviser Brajesh Mishra fears that the deal curtails India's fissile material programme. But the Government dismisses

such fears as unfounded. Officials point out that there is a specific non-hindrance clause that insulates the country's nuclear military programme from the deal. Under it, India can add as many military reactors to meet its fissile material needs. Testing is really the end of the curve of weaponisation. India's sovereign right to conduct a test remains though the US has the "right to react". The US could call for rescinding the deal if it concludes that a future Indian test was an irresponsible act. The BJP then argued that China got a better deal but that doesn't hold up to scrutiny.

The crux though remains the timing. A constructive debate in Parliament with some precautions emerging would strengthen India's bargaining hand. But delaying negotiations beyond that could prove fatal. To quote Shakespeare again: "There is a tide in the affairs of men; Which taken at the flood, leads on to fortune; Omitted, all the voyage of their life; Is bound in shallows and in miseries."